

2.

CASE #	CASE NAME	HEARING NAME
CVME2512738	COLLINS VS OBEIDIN	MOTION TO COMPEL ARBITRATION, DEMURRERS AND MOTION TO STRIKE THE 1 ST AMENDED COMPLAINT

Tentative Ruling: Sustain Christopher Lim Cho and Wendy Yu Cho’s demurrer to the second and third causes of action, without leave to amend—unless the Plaintiff makes a proper request for a hearing and can establish how Plaintiff can overcome the deficiencies stated below. **The motion to strike is moot.**

The Board of Trustees’ demurrer is moot. On 7/8/26, the Court continued the demurrer and ordered the parties to meet and confer. On 8/21/26, declarations were filed by Plaintiff’s attorney and the Board of Trustees of the California State University’s counsel indicating that the parties had agreed that Plaintiff will file an amended pleading. Therefore, the Court grants Plaintiff 30 days’ leave to amend.

Deny the Pi Kappa Alpha International Fraternity, Inc. and Oak Service Corporation’s motion to compel arbitration.

Advance and grant Plaintiff’s motion for leave to amend, which is set to be heard on October 30, 2025, with 30 days’ leave to amend. Vacate the hearing on October 30, 2026. Plaintiff shall have 30 days to file a Second Amended Complaint that complies with the Court’s rulings.

Continue the CMC to January 20, 2027.

Demurrers: The second cause of action alleges that Cho Family Trustees’ negligence includes negligently managing/controlling/supervising the Long Beach property; permitting the Long Beach property to be used as a fraternity house where hazing occurred; failing to monitor or address large-group activities that occurred on the property; failing to implement reasonable restrictions on the use of the premises; and failing to warn or protect foreseeable victims, including Plaintiff, from dangers arising from the party, such as the planning and coordination of the retreat. (FAC, ¶¶ 54 and 55.) There are no allegations in the FAC that Plaintiff sustained any injuries while at the property owned by the Trust. While he alleges that hazing occurred on the property, there are no allegations in the FAC that he was subjected to hazing on the property or sustained injuries on the property.

The third cause of action alleges that the claim against Cho Family Trustees is based on their “failure to supervise, restrict, or control the property’s hazardous use, were a substantial factor in permitting or facilitating the hazing and unsafe travel conditions that led to the April 13, 2025 crash.” (FAC, ¶ 64.) This cause of action is also not based on injuries sustained while on the Trust property or hazing that occurred on the Trust property to Plaintiff.

Both causes of action are based on the fact that fraternity members lived on the property and planned the retreat from the property. Plaintiff appears to allege that, as the landlord to some fraternity members, Family Trustees owed a duty of care to third parties for events the fraternity members planned while living at the property. Family Trustees argue that these causes of action fail because they do not owe such a duty of care to Plaintiff, and Plaintiff does not cite to any authority that imposes such a duty on a landlord.

The *Rowland* factors that courts use to determine if a duty of care exists between a plaintiff and defendant are: (1) foreseeability of harm to plaintiff, (2) degree of certainty that the plaintiff suffered injury, (3) how close the connection between the defendant's conduct and the injury suffered, (4) the moral blame attached to the conduct by defendant, (5) the policy of preventing future harm, (6) the burden to the defendant and consequences of imposing a duty to exercise care, (7) and the availability, cost, and prevalence of insurance for the risk involved. (*Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1213.) "Foreseeability and the extent of the burden to the defendant are ordinarily the crucial considerations, but in a given case one or more of the other *Rowland* factors may be determinative of the duty analysis." (*Ibid.*)

The *Rowland* factors do not support liability here.

Generally, there is no duty to act to protect others from third-party conduct. (*Williams v. Fremont Corners, Inc.* (2019) 37 Cal.App.5th 654, 663.) A duty to protect requires a two-step analysis. "First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in *Rowland* to determine whether relevant policy considerations counsel limiting that duty." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209.) There are no allegations that Plaintiff and Family Trustees had any relationship, let alone a special relationship. Plaintiff points to no authority that a landlord is required to notify third parties of dangerous conditions or events that may occur off their property. A landlord is not required to warn their tenants or the general public of dangers off their property. (*Wylie v. Gresch* (1987) 191 Cal.App.3d 412, 424.)

Plaintiff relies on *Brown v. USA Taekwondo*, *supra* 11 Cal.5th 204. *Brown* involved young athletes whose coaches sexually abused them. (*Id.* at 210.) Plaintiff points to language in *Brown* that provides "a special relationship between the defendant and the dangerous third party is one that 'entails an ability to control [the third party's] conduct.'" (*Id.* at 216.) However, Plaintiff points to no authority that landlords can control what tenants do off of their landlord's property or that landlords can control what plans tenants make while living on the premises.

Arbitration: Plaintiff contends that CCP § 1281.2(c) applies, so the motion to compel arbitration should be denied. Moving Pi Kappa Alpha and Oak Defendants concede that the first two requirements under CCP § 1281.2(c) have been met. However, they argue that there is no common issue of law or fact between the defendants (the third element)—arguing that the basis of liability is distinct among the defendants.

CCP § 1281.2(c) is applicable.

Liability against the Board of Trustees of the California State University ("CSU") is based in part on their alleged failure to prevent hazing-related conduct and unsafe initiation and travel practices by PKA. (FAC, ¶ 52.) Liability asserted against Moving Defendants and PKA, is based on their failure to adequately supervise and regulate fraternity members, events, and travel, and failure to enforce anti-hazing policies. (FAC, ¶¶ 51 and 62.) Liability against the Cho Family Trust is based on the failure to warn of the hazing activities that occurred in Riverside. (FAC, ¶ 54.) If there were no hazing activities or if the hazing activities did not cause or contribute to the accident, the claims against the defendants would all fall. As a result, the claims against the defendants share a common question of fact. If the claims against Moving Defendants went to

arbitration, one venue could find no hazing or that the hazing did not cause or contribute to the accident.

In contrast, another venue could find that hazing occurred or that it caused or contributed to the accident. Accordingly, the requirements for CCP § 1281.2(c) have been met. Therefore, the Court denies the motion to compel arbitration.

3.

CASE #	CASE NAME	HEARING NAME
CVME2606933	ANDERSON VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Deny Defendant's requests for judicial notice in full. Deny the motion to compel arbitration. Defendant to file an Answer or responsive pleading within 30 days. Defendant has failed to meet its burden showing the existence of a valid and enforceable arbitration agreement.

4.

CASE #	CASE NAME	HEARING NAME
CVME2600219	JAMES VS COUNTY OF RIVERSIDE	PETITION FOR ORDER RELIEVING PETITIONER FROM PROVISIONS OF GOVERNMENT CODE SECTION 945.4

Tentative Ruling: Continue to November 17, 2026, for proper service of petition on *the California Attorney General's Office*, pursuant to Government Code section 946.6.